

The Tamil Nadu Maintenance and Welfare of Parents and Senior Citizens Rules, 2009

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State of Tamilnadu- Act

The Tamil Nadu Maintenance and Welfare of Parents and Senior Citizens Rules, 2009

TAMILNADU

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The Tamil Nadu Maintenance and Welfare of Parents and Senior Citizens Rules, 2009

Rule THE-TAMIL-NADU-MAINTENANCE-AND-WELFARE-OF-PARENTS-AND-SENIOR-CITIZENS-RULES-2009 of 2009

Published on 31 December 2009

Commenced on 31 December 2009

[This is the version of this document from 31 December 2009.]

[Note: The original publication document is not available and this content could not be verified.]

The Tamil Nadu Maintenance and Welfare of Parents and Senior Citizens Rules, 2009

Published vide Notification G.O. Ms. No. 170, Social Welfare and Nutritious Meal Programme (SW6), 31st December 2009, Margazhi 16, Thiruvalluvar Aandu-2040

Social Welfare and Nutritious Meal Programme Department

No. SRO A-44(b)/2009. - In exercise of the powers conferred by Section 32 of The Maintenance and Welfare of Parents and Senior Citizens Act, 2007 (Central Act 56 of 2007), the Governor of Tamil Nadu hereby makes the following Rules:-

Chapter I

Preliminary

1.

Short title and commencement.

- (i) These rules may be called the Tamil Nadu Maintenance and Welfare of Parents and Senior Citizens Rules, 2009.

(ii)

The rules hereby made shall come into force on the 31st day of December 2009.

2.

Definitions.

- In these rules, unless the context otherwise requires.--

(a)

"Act" means the Maintenance and Welfare of Parents and Senior Citizens Act, 2007 (Central Act 56 of 2007);

(b)

"application" means an application made to a Tribunal under section 5 of the Act;

(c)

"blood relations" , in the context of a male and a female inmate, mean father-daughter, mother-son and brother-sister (not cousins);

(d)

"Form" means a form appended to these rules;

(e)

"Government" means the Government of Tamil Nadu;

(f)

"inmate" , in relation to an old age home, means a senior citizen duly admitted to reside in such a home;

(g)

"Maintenance Officer" means the officers designated under sub- section (1) of section 18;

(h)

"opposite party" means the party against whom an application for maintenance has been filed under section 4;

(i)

"Presiding Officer" means an officer appointed to preside over a Maintenance Tribunal referred to under sub-section (2) of section 7, or an Appellate Tribunal under sub-section (2) of section 15;

(j)

"Schedule" means a Schedule appended to these rules

(k)

"Section" means a section of the Act;

(2)

Words and expressions used and not defined in these rules but defined in the Act shall have the meaning respectively assigned to them in the Act.

Chapter II

3.

Procedure for filing an application for maintenance, and its registration.

(1)

An application for maintenance under section 4 shall be submitted to the Tribunal in Form - A, in the manner laid down in clauses (a) and (b) of subsection 1 of section 5.

(2)

The application under sub-rule (1) shall be presented in two complete sets along with an envelope bearing full address of the respondent. Where the number of respondents is more than one, as many extra copies of the application as the number of respondents, together with the required number of empty envelopes bearing the full address of each respondent shall be furnished by the applicant.

(3)

On receipt of an application under sub-rule (1), the Presiding Officer shall cause,-

(a)

its essential details to be entered in a Register of Maintenance Claim Cases, to be maintained as in the Annexure I; and

(b)

its acknowledgement in Form `B' to be given notwithstanding anything contained in rule 5, to the applicant or his authorized representative in case of hand delivery, and its despatch by post in other cases and the acknowledgement shall specify, inter-alia, the registration number of the application.

(4)

Where a Tribunal takes cognizance of a maintenance claim suo motu, the Presiding Officer shall, after ascertaining facts, get Form `A' completed as accurately as possible, through the staff of the Tribunal, and shall as far as possible, get it authenticated by the concerned senior citizen or parent, or any person or organisation authorised by him and shall cause the same to be registered in accordance with clause (a) of sub-rule (3) above.

(5)

Extension Officer (Social Welfare) in the Head Quarters of each Revenue Division will assist the Tribunal to make entry in the Register of Maintenance Claim Cases and also for filling up of application.

4.

Preliminary scrutiny of application.

(1)

. On receipt of an application under sub-section (1) of section 5, the Tribunal shall satisfy itself that-

(a)

the application is complete and

(b)

the opposite party has, prima facie, an obligation to maintain the applicant in terms of Section 4.

(2)

In case where the Tribunal finds any lacunae in the application, it may direct the applicant to rectify such lacunae within a reasonable time limit:-

5.

Service of Notice and application on the respondent.

(1)

Once the Tribunal is satisfied on the points mentioned in sub-rule (1) of rule 4, it shall cause to be issued to each person against whom an application for maintenance has been filed, a notice in Form- C along with the copy of the application and its enclosures shall be issued, after making entries in maintenance claim cases register as in the format in Annexure I, in the following manner:-

(a)

by delivering the notice to the person at his last known place or residence; or

(b)

by leaving the notice at his usual or last known place of residence or business in an envelope addressed to the person; or

(c)

by sending the notice by registered post with acknowledgement addressed to the person at his usual or last known place of residence or business; or

(d)

the notice shall be delivered to any person in charge of such place at the moment ; or

(e)

in case of such delivery not being possible it shall be pasted at a conspicuous place on the premises.

(2)

The notice shall require the opposite party to appear in person, on the date to be specified in the notice and to show cause, in writing, as to why the application should not be granted and shall also inform that, in case he fails to respond to it, the Tribunal shall proceed ex- parte.

(3)

Simultaneously with the issue of notice under sub-rule (1) and (2), the applicant(s) shall also be informed of the date mentioned in sub-rule (2) by a notice issued in Form-D.

(4)

The provisions of Order V of the Code of Civil Procedure, 1908, (Central Act 5 of 1908) shall apply, mutatis mutandis, for the purpose of service of notice under sub-rules (2) and (3).

6.

Procedure in case of non-appearance by the Opposite Party.

- In case, despite service of notice, the opposite party fails to show cause in response to a notice, the Tribunal shall proceed ex-parte, by taking evidence of the applicant and making such other inquiry as it deems fit, and shall pass an order disposing of the application.

7.

Procedure in case of admission of claim.

- In case, on the date fixed in the notice issued under rule 5, the opposite party appears and accepts his liability to maintain the applicant, and the two parties arrive at a mutually agreed settlement, the Tribunal shall pass an Order accordingly,.

8.

Procedure for impleading children or relatives.

(1)

An application by the opposite party, under the proviso to subsection (5) of section 5, to implead any other child or relative of the applicant shall be filed on the first date of hearing as specified in the notice issued under sub-rule (2) of rule 5:

Provided that no such application shall be entertained after such first hearing, unless the opposite party shows sufficient cause for filing it at a later stage.

(2)

On receipt of an application under sub-rule (1), the Tribunal shall, if it is prima facie satisfied, after hearing the parties, about the reasonableness of such application, issue notice to such other child or relative to show cause why they should not be impleaded as a party, and shall after giving them an opportunity of being heard, pass an order regarding their impleadment or otherwise.

(3)

In case the Tribunal passes an order of impleadment under sub-rule (2), it shall cause a notice to be issued to such impleaded party in Form "C" in accordance with rule 5.

9.

Appointment of Conciliation Officer.

(1)

The State Government shall by Notification in the Official Gazette, designate the District Social Welfare Officer as Conciliation Officer.

10.

Reference to Conciliation Officer.

(1)

In case, on the date fixed in the notice issued under rule 5, the opposite party appears and show cause against the maintenance claim, the Tribunal shall seek the opinion of both the parties as to whether they would like the matter to be referred to a Conciliation Officer and if they are willing, the Tribunal shall ask them whether they would like the matter to be referred to the Conciliation Officer or to any other person acceptable to both parties.

(2)

If both the parties agree on any person, the Tribunal shall appoint such person as the Conciliation Officer in the case, and shall refer the matter to the Conciliation Officer through a letter in Form 'E', requesting the Conciliation Officer to try and work out a settlement acceptable to both parties, within a period not exceeding one month from the date of receipt of the reference.

(3)

The reference in Form 'E' shall be accompanied with copies of the application and replies of the opposite party thereto.

11.

Proceedings by Conciliation officer.

(1)

Upon receipt of a reference under rule 10, the Conciliation Officer shall hold meetings with the two parties as necessary, and shall try to work out a settlement acceptable to both the parties, within a period of one month from the date of receipt of the reference.

(2)

If the Conciliation Officer succeeds in working out a settlement acceptable to both the parties, he shall draw up a memorandum of settlement in Form 'F', get it signed by both parties, and forward it, with a report in Form 'G', along with all records of the case received from the Tribunal, back to the Tribunal within a month from the receipt of the reference.

(3)

If the Conciliation Officer is unable to arrive at a settlement within one month of receipt of a reference under Rule 10, he shall return the papers received from the Tribunal along with a report in Form 'H', showing efforts made to bring about a settlement and the points of difference between the two parties which could not be reconciled.

12.

Maintenance of Register.

(1)

The District Social Welfare Officer shall maintain proper records by way of maintaining registers duly indexed, containing the details of the voluntary organization providing Age care services as in Annexure II.

(2)

The District Social Welfare Officer has powers to inspect Old Age Homes maintained by the individuals/ a group of individuals/ voluntary organizations / institutions / Charitable trusts/ statutory bodies etc. and collect data from the organizations.

(3)

Any voluntary organization / institution / individuals / a group of individuals / Charitable trusts/ Statutory bodies etc., running Old Age Home shall register with District Social Welfare Office of each District.

13.

Action by the Tribunal in case of settlement before a Conciliation Officer.

(1)

In case, the Tribunal receives a report from the Conciliation Officer under sub-rule (2) of rule 11 along with a memorandum of settlement, it shall give notice to both parties to appear before it on a date to be specified in the notice, and confirm the settlement.

(2)

In case on the date specified in the notice as above, the parties appear before the Tribunal and confirm the settlement arrived at before the Conciliation Officer, the Tribunal shall pass a final order as agreed in such settlement.

14.

Action by the Tribunal in other cases.

(1)

in case,-

(I)

the applicant (s) and the opposite parties do not agree for reference of their dispute to a Conciliation Officer as per Rule 10; or

(II)

the Conciliation Officer appointed under Rule 10 sends a report under sub-rule (3) of Rule 11, conveying inability to work out a settlement acceptable to both the parties; or

(III)

no report is received from a Conciliation Officer within the stipulated time-limit of one month; or

(IV)

in response to the notice issued under sub-rule (1) of Rule 13, one or both the parties decline to confirm the settlement worked out by the Conciliation Officer;

the Tribunal shall give to both the parties an opportunity of leading evidence in support of their respective claims, and shall, after a summary inquiry as provided in sub section (1) of Section 8, pass such order as it deems fit.

(2)

An order passed under rule 6, rule 7 or under sub-rule (1) above shall be a speaking one, spelling out the facts of the case as ascertained by the Tribunal, and the reasons for the order.

(3)

While passing an order under sub-rule (1), directing the opposite party to pay maintenance to an applicant, the Tribunal

shall take the following into consideration:-

- (a) amount needed by the applicant to meet his basic needs, especially food, clothing, accommodation, and healthcare;
- (b) income of the opposite party; and
- (c) value of, and actual and potential income from the property, if any, of the applicant which the opposite party would inherit and/or is in possession of.

(2)

A copy of every order passed, whether final or interim, on an application, shall be given to the applicant(s) and the opposite party or their representatives, in person, or shall be sent to them through a process server or by registered post and a copy shall be communicated to the maintenance officer.

15.

Maximum maintenance allowances.

- The maximum maintenance allowance which a Tribunal may order the opposite party to pay shall, subject to a maximum of rupees ten thousand per month, be fixed in such a manner that it does not exceed the monthly income from all sources of the opposite party, divided by the number of persons in his family, counting the applicant or applicants also among the opposite party's family members.

Chapter III

Procedure of Appellate Tribunal

16.

Form of appeal.

- An appeal under sub-section (1) of section 16 shall be filed before the Appellate Tribunal in Form 'I', and shall be accompanied by a copy of the impugned order of the Maintenance Tribunal.

17.

Registration and Acknowledgement of appeal.

- On receipt of an appeal, the Appellate Tribunal shall register it in a register to be maintained for the purpose in such form as the Government may direct, and shall, after registering such appeal, give an acknowledgement to the appellant, specifying the appeal number and the next date of hearing, in Form 'J'.

18.

Notice of hearing to the respondent.

(1)

On receipt of an appeal, the Appellate Tribunal shall, after registering the case and assigning an appeal number, cause notice to be served upon the respondent under its seal and signature in Form 'K'.

(2)

The notice under sub-rule (1) shall be issued through registered post with acknowledgement due, or through a process server.

(3)

The provisions of order V of the Civil Procedure Code (Central Act 5 of 1908) shall apply mutatis mutandis for the purposes of service of notice issued under sub-rule (1).

Chapter IV

Scheme for Management of old age Homes Established under Section 19

19.

Scheme for management of old age homes for indigent Senior Citizens.

(1)

Old age homes established under section 19 shall be run in accordance with the following norms and standards:-

(A)

the home shall have physical facilities and shall be run in accordance with the operational norms as laid down in the Schedule.

(B)

inmates of the home shall be selected in accordance with the following procedure:-

(a)

admission shall be considered on the need basis. Cases referred by the District Collector, Police officials etc., shall be admitted day to day if necessity arises.

(b)

in case the number of eligible applicants on any occasion is more than the number of places available in a home for admission, selection of inmates will be made in the following manner:-

(i)

the more indigent and needy will be given preference over the less indigent applicants;

(ii)

other things being equal, older senior citizens will be given preference over the less old; and

(iii)

other things being equal, female applicants will be given preference over male applicants. Illiterate and/ or very infirm senior citizens may also be admitted without any formal application if the District Collector or other competent authority, designated by him for the purpose, is satisfied that the senior citizen is not in a position to make a formal application, but is badly in need of shelter,

(C)

while considering cases for admission, no distinction shall be made on the basis of religion or caste;

(D)

the home shall provide separate lodging for men and women inmates, unless a male and a female inmates are either blood relations or a married couple;

(E)

day-to-day affairs of the old age home shall be managed by a Management Committee as in Annexure III.

(2)

Government may issue detailed guidelines/orders from time to time for admission into and management of old age homes in accordance with the norms and standards laid down in sub-rule (1) and the Schedule.

Chapter V

Duties and Powers of the District Collector

20.

Duties and powers of the District Collector.

(1)

The District Collector shall perform the duties and exercise the powers mentioned in sub-rule (2) and (3) so as to ensure that the provisions of the Act are properly carried out in his district.

(2)

. It shall be the duty of the District Collector to, -

(i)

ensure that life and property of senior citizens of the district are protected and they are able to live with security and dignity;

(ii)

oversee and monitor the work of Maintenance Tribunals and Maintenance Officers of the district with a view to ensuring timely and fair disposal of applications for maintenance, and execution of Tribunals' orders;

(iii)

oversee and monitor the working of old age homes in the district so as to ensure that they conform to the standards laid down in these rules, and any other guidelines and orders of the Government;

(iv)

ensure regular and wide publicity of the provisions of the Act, and Central and State Governments' programmes for the welfare of senior citizens;

(v)

encourage and coordinate with panchayats, municipalities, Nehru Yuva Kendras, educational institutions and especially their National Service Scheme Units, organizations, specialists, experts, activists, etc. working in the district so that their resources and efforts are effectively pooled for the welfare of senior citizens of the district;

(vi)

ensure provision of timely assistance and relief to senior citizens in the event of natural calamities and other emergencies;

(vii)

ensure periodic sensitisation of officers of various Departments and Local Bodies concerned with welfare of senior citizens, towards the needs of such citizens, and the duty of the officers towards the latter;

(viii)

review the progress of investigation and trial of cases relating to senior citizens in the district, except in cities having a Police Commissioner;

(ix)

ensure that adequate number of prescribed application forms for maintenance are available in offices of common contact for citizens like Panchayats, Block Development Offices, Tahsildar offices, District Social Welfare Offices, Collectorate etc;

(x)

promote establishment of dedicated Helplines for senior citizens at district headquarters, to begin with; and

(xi)

perform such other function as the Government, may by order, assign to the District Collector in this behalf, from time to time.

(3)

With a view to performing the duties mentioned in sub-rule(2), the District Collector shall be competent to issue such directions, not inconsistent with the Act, these rules, and general guidelines of the Government, as may be necessary, to any concerned Government or statutory agency or body working in the district, and especially to the following:-

(a)

Officers of the Government in the Police, Health and Publicity Departments, and the Department dealing with welfare of senior citizens;

(b)

Maintenance Tribunals and Conciliation Officers;

(c)

Panchayats and Municipalities; and

(d)

Educational institutions.

Chapter VI

Protection of Life and Property of Senior Citizens

21.

Action plan for the protection of life and property of Senior Citizens.

(1)

The District Superintendent of Police and in the case of cities having a Police Commissioner, such Police Commissioner shall take all necessary steps, subject to such guidelines as the Government may issue from time to time for the protection of life and property of senior citizens.

(2)

Without prejudice to the generality of sub-rule (1):-

(i)

each police station shall maintain an up-to-date list of senior citizens living within its jurisdiction, especially those who are living by themselves (i.e. without there being any member in their household who is not a senior citizen);

(ii)

a representative of the police station together as far as possible, with a social worker or volunteer, shall visit such senior citizens at regular intervals of atleast once a month, and shall, in addition, visit them as quickly as possible on receipt of a request of assistance from them;

(iii)

complaints/problems of senior citizens shall be promptly attended to, by the local Police;

(iv)

one or more Volunteers' Committee(s) shall be formed for each Police Station which shall ensure regular contact

between the senior citizens, especially those living by themselves, on the one hand, and the police and the district administration on the other;

(v)

the District Superintendent of Police or, as the case may be, the Police Commissioner shall cause to be publicised widely in the media and through the Police Stations, at regular intervals, the steps being taken for the protection of life and property of senior citizens;

(vi)

each Police Station shall maintain a separate Register containing all important particulars relating to offences committed against Senior Citizens as in Annexure IV;

(vii)

the Register referred to in clause (vi) shall be kept available for public inspection, and every officer inspecting a Police Station shall invariably review the status as reflected in the Register;

(viii)

the Police Station shall send a monthly report of such crimes to the District Superintendent of Police by the 10th of every month;

(ix)

list of Do's and Don'ts to be followed by senior citizens, in the interest of their safety will be widely publicised;

(x)

antecedents of domestic servants and others working for senior citizens shall be promptly verified, on the request of such citizens;

(xi)

community policing for the security of senior citizens will be undertaken in conjunction with citizens living in the neighbourhood, Residents' Welfare Associations, Youth Volunteers, Non- Government Organisations, etc;

(xii)

the District Superintendent of Police shall submit to the Director General of Police and to the District Collector, a monthly report by the 20th of every month, about the status of crimes against senior citizens during the previous month, including progress of investigation and prosecution of registered offences, and preventive steps taken during the month;

(xiii)

the District Collector shall cause the report to be placed before the District-level Coordination-cum-Monitoring Committee constituted under rule 23.

(xiv)

The Director General of Police shall cause the reports submitted under clause (xii) to be compiled, once a quarter, and shall submit them to the Government every quarter as well as every year for, inter-alia, being placed before the State Council of Senior Citizens constituted under rule 22.

Chapter VII

State Council and District Committees of Senior Citizens

22.

State Council of Senior Citizens.

(1)

The State Government may, by order, establish a State Council of Senior Citizens to advise the Government on effective implementation of the Act and to perform such other functions in relation to Senior Citizens as the Government specify

(2)

The State Council shall consist of the following members, namely:-

1

Chief Secretary to Government, Chennai-9.

..

Chairperson

2

Secretary to Government, Revenue

Department, Chennai-9

..

Member

3

Secretary to Government, Personnel and
Administrative Reforms (Training) Department, Chennai-9.

..

Member

4

Secretary to Government, Finance Department,
Chennai-9.

..

Member

5

Secretary to Government, Social Welfare and
Nutritious Meal Programme Department, Chennai-9.

..

Member

6

Secretary to Government, Health and Family
Welfare Department, Chennai-9

..

Member

7

Secretary to Government, Housing and Urban
Development Department, Chennai-9

..

Member

8

Secretary to Government, Transport Department,
Chennai-9.

..

Member

9

Secretary to Government, School Education
Department, Chennai-9.

..

Member

10

Secretary to Government, Public Works
Department, Chennai-9

..

Member

11

Secretary to Government, Home Department,
Chennai-9

..

Member

12

Director General of Police, Tamil Nadu,
Chennai-4

..

Member

13

Member Secretary, Sports & Development

Authority of Tamil Nadu, Chennai-84.

..

Member

14

Director, Rural Development , Chennai-15

..

Member

15

Director, Information & Public Relation,

Chennai-9

..

Member

16

Director, Tourism, Chennai-2

..

Member

17

Commissioner, Commissionerate of Social Welfare,

Chepauk, Chennai-5.

..

State Level Nodal Officer and Convener

18

Non-official Members Nominated by the State

Government

..

7 (Seven)

(3)

The tenure of the Non-official members of the State Council shall be three years.

(4)

The State Council shall meet at least once in every six months.

(5)

The number of Non-official members shall be 7 (seven) and they are eligible for re-nomination.

23.

District Committee of Senior Citizens.

(1)

The State Government may by order, establish a District Committee of Senior Citizens for each District to advise in effective and coordinated implementation of the Act, at the district level, and to perform such other functions in relation to senior citizens at the district level as the State Government may specify.

(2)

The District Committee shall consists of the following members, namely:--

1

District Collector

..

Chairperson

2

District Superintendent of Police

..

Member

3

Deputy Director (Health)

..

Member

4

District Social Welfare Officer

..

Member Secretary

5

Reputed Non-Governmental Organisation (Ageing field) (2) (Two)

..

Member

6

Prominent Senior Citizens (2) (Two)

..

Member

(3)

Non-official members shall be nominated by the District Collector Concerned.

(4)

The tenure of the Non-official members of the District Committee shall be three years.

(5)

The District Committee shall meet at least once in every three months.

(6)

The number of Non-official Members shall be 4 (Four) and they are eligible for re-nomination.

Schedule

[See Rule (16)]

Norms of Physical Facilities and Operational Standards for an Old age Home for Indigent Senior Citizens Established Under Section 19 of the Act.

Physical Facilities

1.

Land :

The land for the old age home should be adequate for living, medical facilities, dining, toilet facilities, recreation, gardening, further expansion, etc.,

2.

Living Space :

The Old age home shall, as far as possible, have minimum area per inmate as per the following norms:-

(i) area of bedroom/ dormitory per inmate

..

7.5.Sq. metres

(ii) Living area or carpet area per inmate i.e.

including (i) above plus ancillary areas like kitchen, dining hall, recreation room, medical room, etc., but excluding verandah, corridor, etc.,

..

12 Sq. metres

3.

Facilities :

(1) The old age home shall have the following facilities:-

- (i) residential area comprising rooms / dormitories - separately for men and women;
- (ii) adequate water for drinking and ancillary purposes;
- (iii) electricity, fans and heating arrangement for inmates (as necessary);
- (iv) kitchen-cum-store and office;
- (v) dining hall;
- (vi) adequate number of toilets and baths, including toilets suitable for disabled persons;
- (vii) recreation facilities, television, newspaper and an adequate collection of books; and
- (viii) first aid, sick bay, and primary healthcare facilities.

(2) The old age home should be barrier-free with provision of ramps and handrails, and wherever necessary, lifts, etc.,

II Operational standards

1. Supply of nutritious and wholesome diet as per scale to be fixed by the Government.
2. Adequate clothing and linen for the inmates, including for the winter season.
3. Adequate arrangements for sanitation, hygiene, and watch and ward / security.
4. Arrangements with the nearest Government hospital for emergency medical care, and with the nearest Police Station for security requirements.

Form - A

(See Rule 3)

Application Under Rule 3 of the Tamil Nadu Maintenance and Welfare of Parents and Senior Citizens Rules, 2009

1.

Details of the Applicant

:

i. Name of the Applicant

:

ii. Name of the Father / Husband

:

iii. Age

:

iv. Sex

:

v. Permanent Address

:

vi. Present Address

:

vii. Phone Number if any

:

2. Details of Respondents

S.No.

Name

Relationship with the Applicant

Address

Telephone No. if any

3. Assistance Needed

S.No.

Assistance

Yes/No

Nature of Assistance

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.
- 7.

Counselling

Food

Medical Facilities

Shelter

Legal Aid

Police Assistance

Maintenance

- 4.

Assistance for initiating Criminal Proceeding

:

- 5.

Facts of the case

:

The facts of the case are given below:-

(Give here a concise statement of facts in a chronological order, each paragraph containing as neatly as possible a separate issue, fact or otherwise).

- 6.

Details of Index

:

An index in duplicate, containing the details of the documents to be relied upon, is enclosed.

- 7.

List of enclosures

:

1.2.

.....3.

.....

Declaration

I.....(Name of the applicant) S/o,D/o,W/o.....age.....resident ofdo hereby declare that the contents for paras 1 to 7 are true to the best of my personal knowledge and belief and that nothing material has been concealed there from, and also declare that the subject matter of the order against which I seek redressal is within the Jurisdiction of the Tribunal. I further declare hereby that the matter regarding which, this application has been made is not pending before any court of law or any other authority or has not been rejected by any court of law or other authority.

Place.....

Date

Signature of the Applicant.

To

The Presiding Officer(s),

.....

.....

.....

Form - B

(See Rule 3)

Acknowledgement

Receipt of the application filed under Tamil Nadu Maintenance and Welfare of Parents and Senior Citizens Rules, 2009
by

Thiru/Tmt.....

Address

is hereby acknowledged.

for Presiding Officer.

Form-C

(See Rule 5)

Notice to the Opposite Party

(Issued under rule-5 of the Maintenance and Welfare of Parents and Senior Citizens Rules, 2009)

To

.....

.....

.....

Sir/Madam,

An application has been filed by Mr/Mrs. residing atagainst you for not paying maintenance and you are requested to appear before the Tribunal in person on day of at 10.30 AM and render your reply why the application should not be ordered against you on the above failing which the matter will be decided exparte.

Seal with date and

Signature of the

Presiding Officer.

Form-D

(See Rule 5)

Notice to the Petitioner/ Applicant

(Issued under rule-5 of the Maintenance and Welfare of Parents and Senior Citizens Rules, 2009)

To

.....

.....

.....

Sir/Madam,

On application filed by you seeking maintenance under Maintenance and Welfare of Parents and Senior Citizens Act, 2007 from Thiru/Tmt. residing at, you are required to appear in person before the Tribunal on day of for hearing. Kindly attend on the above date at 10.30 AM, failing which the matter will be decided exparte.

Seal with date and

Signature of the

Presiding Officer.

Form-E

(See Rule 10)

To

The Conciliation Officer

.....

.....

Sir/Madam,

The Tribunal is herewith forwarding to your kindself the petition bearing No..... dated..... received from Thiru/ Tmt..... residing at Street, Village. Block seeking maintenance under Maintenance and Welfare of Parents and Senior Citizens Act, 2007 and you are requested to arrive

a settlement which is acceptable to both parties and the findings may be informed to this Tribunal within a period not exceeding one month, from the date of receipt of the references. If any amicable settlement is arrived that may also be informed to this Tribunal so as to enable this Tribunal to pass an order to that effect. If you are unable to arrive at a settlement within one month from the receipt of the reference, you shall return the papers along with a report showing efforts made by you to bring about settlement. Copies of application, replies of the opposite party along with relevant records are herewith enclosed for reference at your end.

Presiding Officer.

Form - F

(See Rule 11)

Before the Tribunal for Maintenance and Welfare of Parents and Senior Citizens.

O.P.No. of 2009

ABPetitioner

Vs.

CD Respondent

To

The Presiding Officer,

Tribunal for Maintenance of Parents and Senior Citizens.

..... Division,

..... District.

Sir/Madam,

The Hon'ble Tribunal had referred me the petition of Thiru/Tmt..... residing atstreet, Block, District, bearing the No..... to arrive the settlement of maintenance acceptable to both parties. It is arrived at a sum of Rs...../- per month as maintenance payable to the Petitioner by the respondent. Both parties have accepted the above settlement arrived at by me.

Signature of the applicant.

Signature of the opposite party.

Conciliation Officer.

Form - G

(See Rule 11)

Before the Tribunal for Maintenance and Welfare of Parents and Senior Citizens.

O.P.No. of 2009

ABPetitioner

Vs.

CD Respondent

Report of the Conciliation Officer

I have carefully considered the application and the records filed by Senior Citizen, who is unable to maintain himself/herself from his own earning or out of the property owned by him/her. The record shows about the property of the legal heirs, income of the legal heirs, position of the property of the Senior Citizen and after his/her life time the legal heir would inherit the property.

On Scrutinizing the available records, I have arrived at the amount of Maintenance as Rs..... payable to Thiru/ Tmt.....the Senior Citizen by Thiru..... the legal heirs of the Senior Citizen.

Herewith, I return all records of the case received from the Tribunal.

Signature with seal of the Conciliation Officer.

Form - H

(See Rule 11)

Before the Tribunal for Maintenance and Welfare of Parents and Senior Citizens.

O.P.No. of 2009

ABPetitioner

Vs.

CD Respondent

To

The Presiding Officer
Tribunal for Maintenance of Parents and Senior Citizens.

.....

.....

Sir/Madam,

The Hon'ble Tribunal had referred the above matter to arrive a settlement and the period fixed for the same is one month. I am unable to arrive a settlement within the said period for the reasons stated in my report which shows the efforts taken by me to arrive a settlement along with the points of difference between the two parties which could not be reconciled. I hereby also return the papers referred to me alongwith my report.

Signature with seal of the Conciliation Officer.

Form - I

(See Rule 16)

Memorandum of Civil Miscellaneous Appeal under Section 16 of the Maintenance and Welfare of Parents and Senior Citizens Act, 2007.

Appellate Tribunal of Maintenance of Parents and Senior Citizens.

Appeal No..... of 2009

against

O.P.No..... of 2009

(On the file of the Tribunal, District)

AB Appellant/Petitioner

1. CD Vs.

2. EF Respondent/Respondents

I. Appellant: AB son/daughter of the , aged about years, residing at The Address for service of all Notices and Processes on the Appellant is at.....

II. Respondent(S): (1) CD, at

(2)

EF, at

The Address for service of all notices and processes on the respondents are

III. The Appellant above named begs to prefer the above appeal against the order dated..... made in O.P.No. of 2009 by the Hon'ble Tribunal on the following among others:

Grounds

Here mention the points for appeal

Therefore, it is prayed that this Hon'ble Tribunal may be pleased to call for the records of the Tribunal and pass appropriate order / setaside the order passed on in O.P.No. of 2009 by the Tribunal and thus render justice.

Signature of petitioner.

(Appellant)

Form - J

(See Rule 17)

Acknowledgement

The Appeal filed by Thiru/Tmt. residing at State Village Taluk is received on this day of and the appeal No is The next date of hearing is

Signature of representative of the

Appellate Authority

Form - K

(See Rule 18)

Before the Tribunal for Maintenance and Welfare of Parents and Senior Citizens.

Appeal No: of 2009

ABAppellant

Vs.

CD Respondent

To

.....

.....

.....

Please take notice that an appeal is preferred against you and the Appellate Tribunal has posted it for hearing on day of 2009 for your appearance. Kindly be present on the date of hearing at 10.30 A.M. In case if you fail to respond to it, the Appellate Tribunal shall proceed ex-parte.

for Appellate Tribunal.

Annexure-I

(See Rules 3 and 5)

Register of Maintenance of Claim Cases by the Tribunal

S.No.

Name of the applicant with address and Phone No.

Age.

Sex.

Date of receipt of application.

Nature of claim.

Date of notice served.

Date of the hearing.

Details of order if any passed by the Tribunal

Remarks.

to the petitioner

to the respondent

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

Annexure-II

(See Rule 12)

List of Voluntary Organisations Providing Age Care Services

S.No.

Name of the Institution.

Address with Phone No.

Contact person and Phone No.

Services provided for aged persons.

Other activities.

No. of beneficiaries.

Building facilities.

Registered under which Act.

Remarks.

Male

Female

Own

Rented

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)
- (11)
- (12)

Annexure-III

(See Rule 19)

Management Committee in Old Age Homes

S.No.

Name of the Officer

Designation

- 1
- 2
- 3
- 4

District Social

Welfare Officer

Extension Officer

(SW)

Non Governmental

Organisation

Inmates (3 persons)

Chairman

Member

Member

Member

Annexure-IV

(See Rule 21)

Details of Offences Committed against Senior Citizens

S.No.

Name and address of Senior Citizen.

Age.

Sex.

Nature of offences committed against senior citizen.

Date of incidence.

Stage of investigation.

Prosecution of registered offences.

Steps taken by the police station.

Remarks.

- (1)
- (2)
- (3)

- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)

Related AI tags, queries and research notes
Translation